

Present:
Mr. Justice S M Kuddus Zaman
and
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.27205 of 2023.

Md. Mohsin & another

.....Accused-Petitioners

-Versus-

The State

... Opposite Party

Mr. Md. Jahangir Alam, Advocate

.... For the accused-petitioner

Mr. Sujit Chatterjee, D.A.G

... For the State

Heard and Judgment on: 07.02.2024.

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused-petitioner should not be enlarged on bail in New Market Police Station Case No.04 dated 07.11.2022 corresponding to G. R. No.199 of 2022 under sections 8/9/10/12/13 of the Santrash Birodhi Ain, 2009 (as amendment 2013), now pending in the Court of Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order of orders as to this Court may seem fit and proper.

Facts in short are that the accused petitioners namely Md. Mohsin and Md. Samir by arrested by police on 07.11.2022 while they were pasting poster of proscribed militant organization Hisbuth Taharir in the New Market area.

Mr. Md. Jahangir Alam learned Advocate for the petitioners submit that the accused petitioners were arrested in connection of this case on 07.11.2022 but the investigation of this case has not yet been concluded. The learned Advocate further submits that no fire arms or explosive were

recovered from their possession nor they have confessed to have participated in the terrorist activities.

Mr. Sujit Chatterjee learned Deputy Attorney General raises objection against granting of bail to the accused petitioners at this point of time.

We have considered the submissions of the learned Advocate for respective parties and carefully examined all materials on record.

It turns out from record that nine posters of proscribed organization Hisbuth Taharir were recovered from the possession of petitioner No.01 Md. Mohsin and one poster was recovered from the possession of petitioner No.2 Md. Samir. No other incriminating material was recovered from their possession. They did not make any confession and they are in custody in connection of this case since 07.11.2022 but the investigation of this case has not yet been concluded.

Considering above materials on record, we are inclined to grant bail to the accused-petitioners.

Accordingly, the Rule is made absolute.

Let accused petitioners (1) **Md. Mohsin, son of Md. Mokbul Hossain Prodhan & (2) Md. Samir, son of Md. Zahangir** be enlarged on bail subject to furnishing bail bond to the satisfaction of the Chief Metropolitan Magistrate, Dhaka.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.